

OBSERVATIONS BY M. ANZILOTTI ON ONE POINT
IN THE STATEMENT OF REASONS.

Amongst the reasons set forth in the Judgment, there is one point upon which I regret that I am unable to agree with the Court ; this point is, I consider, of sufficient importance to compel me to state the grounds for my disagreement.

I refer to the idea expressed on page 16 and following of the Judgment, where it is stated that the differences of opinion contemplated by Article 23 of the Geneva Convention may also include differences of opinion as to the extent of the sphere of application of Articles 6 to 22, and, consequently, the difference of opinion existing between the Parties in the present case. This difference is, on page 16 of the Judgment, stated as relating to the question whether, in the case of dispossession under consideration, Articles 6 to 22 of the Geneva Convention are or are not applicable.

In my opinion, this notion is scarcely in harmony with the nature and extent of the Court's jurisdiction.

The nature of the enquiry which the Court must undertake in accordance with Article 36, last paragraph, of its Statute in order to reach the conclusion that the dispute submitted to it falls or does not fall within its jurisdiction, has been laid down in Judgment No. 2 (the Mavrommatis Concessions in Palestine) as follows :

“Neither the Statute nor the Rules of Court contain any rule regarding the procedure to be followed in the event of an objection being taken *in limine litis* to the Court's jurisdiction. The Court therefore is at liberty to adopt the principle which it considers best calculated to ensure the administration of justice, most suited to procedure before an international tribunal and most in conformity with the fundamental principles of international law.

“For this reason the Court, bearing in mind the fact that its jurisdiction is limited, that it is invariably based on the consent of the respondent and only exists in so far as this consent has been given, cannot content itself with the provisional conclusion that the dispute falls or not within the terms of the Mandate. The Court, before giving judgment on the

merits of the case, will satisfy itself that the suit before it, in the form in which it has been submitted and on the basis of the facts hitherto established, falls to be decided by application of the clauses of the Mandate. For the Mandatory has only accepted the Court's jurisdiction for such disputes."

I regard this passage as a very accurate statement of the principles of international law which govern the Court's jurisdiction, and I am very glad to note that its essential idea is restated on page 15 of the present Judgment.

That being the case, it follows that, in order to reach the conclusion that the Court has jurisdiction, it is not sufficient to find that the difference of opinion between Germany and Poland relates to the question whether Articles 6 to 22 of the Geneva Convention are or are not applicable in the case of the factory at Chorzow.

The applicability of the above articles is, on the contrary, the very condition of the Court's power to deal with the dispute, for it is only as regards disputes concerning the interpretation and application of these articles that Poland has accepted the Court's jurisdiction.

A dispute on the point whether a particular case falls within Articles 6 to 22 is nothing else than a dispute on the extent of the Court's jurisdiction; it is in virtue of Article 36, last paragraph, of the Statute—and accordingly when it considers the question of its competence—and not in virtue of Article 23—i.e. at the moment when it deals with the merits of the case—that the Court can deal with such a dispute.

(Signed) D. ANZILOTTI.
